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JUDGMENT SHEET
LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Criminal Appeal No.101-J/2013

Allah Bakhsh *alias* Bakhshi vs The State

JUDGMENT

Date of hearing:	12.01.2021
Appellant by:	Mr. James Joseph, Advocate.
State by:	Malik Riaz Ahmed Saghla, Additional Prosecutor General.
Complainant by:	Rana Mehboob Ali, Advocate

Farooq Haider, J:- This appeal has been filed against the judgment dated: 06.06.2013 passed by learned Judge Anti-Terrorism Court-IV, Lahore (Camp at Dera Ghazi Khan), whereby in case arising out of F.I.R. No.186/2006 dated: 06.05.2006 registered under Section: 365-A PPC at Police Station: Jatoi, District: Muzaffargarh (Ex.PA), the learned trial Court has convicted and sentenced the appellant as under:-

- i) **under Section 7(e) of Anti-Terrorism Act, 1997**
to imprisonment for life with forfeiture of property.
- ii) **under Section: 365-A PPC read with Section: 21 (m)**
(i) of Anti-Terrorism Act, 1997 *to imprisonment for*
life with forfeiture of property.

Both sentences were ordered to run concurrently with benefit of Section: 382-B Cr.P.C to the extent of offences under Pakistan Penal Code.

2. Briefly, the prosecution case as per statement got recorded by Ahmad Ali (complainant/PW-3), on the basis of which, aforementioned F.I.R. (Ex.PA) was registered, is that on 13.02.2006 Ahmad Ali (complainant/PW-3) alongwith his brother Muhammad Amjad and paternal uncle Ghulam Muhammad came to irrigate his wheat crops situated at Rampur where at about 07:30 p.m. nineteen accused persons while armed with deadly weapons came, out of whom, seven were having muffled faces and two of them caught his arms and wanted to tie him, however, he made resistance and attempted to run away but Khudli Bhand (accused, whose name

subsequently came into knowledge of the complainant) hurriedly asked Munira Badar (accused) to catch him, who caught the complainant by putting his arm around his neck and showed annoyance to Khudli Bhand for uttering his name, thereafter, they picked licensed gun .12 bore single barrel of the complainant lying in the trolley, took him with them and started walking towards river; in the meantime, Muhammad Amjad (brother of complainant) and Ghulam Muhammad (uncle of complainant) came there and asked about the matter, upon which, accused persons threatened to kill if they came near to them and asked to arrange for ransom; then, after tying hands of the complainant/victim, they took him on foot at bank of Indus River and started talking each other, complainant/victim identified two of the accused persons in the light of match stick, out of whom, one was Jamali s/o Hassan and other was Ghulam Akbar; he also identified one accused as Gul Mohammad Mastoi; then, 5/6 accused persons brought *Sandharian* (سندھاریاں) and Cock filled sacks (کاک سے بھرے گٹو), then, accused persons started making preparation for entering in river while putting off clothes, some accused persons started going back from bank of river when Khuldi Bhand said to Gul Muhammad Mastoi for asking Allah Bux Kharosh to send grocery, soon; due to fear of murder, complainant did not tell that he had identified Jamali, Ghulam Akbar and Gul Muhammad; 12 accused persons took complainant/victim by crossing the river in the camp situated in Jungle (جنگل), where **Allah Bakhsh alias Bakhshi Hajana** (present appellant), Nazak Bosan, Rasheed Dareeshak and Rasheed Gopang were present; Rasheed Dareeshak (accused) chained the foot of victim and locked the same; victim was kept in that camp for ten days; Khudli Bhand (accused) contacted on mobile of victim with his brother and uncle and made him to talk with them, then he talked himself and demanded Rs.50,00,000/-; they shifted the complainant to another camp at one night after walking about four hours and kept on making him to talk with his family and demanding ransom; lastly, on 03.05.2006, he was got released by his uncle Ghulam Muhammad after paying ransom of Rs.6,00,000/-; thereafter, he got lodged instant F.I.R.

On 11.06.2011, Orangzeb A.S.I. brought the appellant to Police Station: Jatoi after getting him transferred from District Jail, Rahim

Yar Khan and handed over his custody to Mehr Abdul Qayyum Inspector (PW-5) and after completion of the investigation, he was challaned to the Court; on 05.01.2013, he was formally charge sheeted under Section: 7(e) of Anti-Terrorism Act, 1997 read with Section: 365-A PPC, to which he pleaded not guilty and claimed trial.

3. Prosecution produced its five witnesses, and then closed its evidence after giving up PW Allah Bachaya S.I. being unnecessary.

Statement of the accused/appellant was recorded under Section: 342 Cr.P.C. wherein he refuted allegations levelled against him; he did not opt to depose on oath under Section 340 (2) Cr.P.C., however, produced some documents i.e. Ex.DA, Ex.DB, Ex.DC and Ex.DD, in his defence.

At the end of trial, after thrashing entire evidence and evaluating arguments advanced by learned counsel for the parties in support of their respective versions, learned trial court found that prosecution has proved its case against the appellant beyond reasonable doubt, convicted and sentenced him as mentioned and detailed in paragraph No.1 above. Hence, the instant appeal before this Court.

4. Learned counsel for the appellant submitted that impugned convictions recorded against and sentences awarded to the appellant through impugned judgment are against the 'law and facts' and result of non-reading/misreading of evidence. Learned counsel for the appellant also contended that the gang, who abducted the victim/complainant, was inimical to the appellant; further added that evidentiary value of the material with regard to implication of the appellant, is a big question mark and finally prayed for acquittal of the appellant.

5. On the other hand, learned Additional Prosecutor General assisted by learned counsel for the complainant has supported the impugned judgment and prayed for dismissal of the appeal.

6. Arguments heard. Record perused.

7. After hearing learned counsel for both the parties and going through the record we have observed that appellant was specifically nominated by Ahmad Ali complainant/victim (PW-3) in the F.I.R. as well as in his statement before learned trial court with specific role that after his abduction for ransom by co-accused persons (nominated

in the F.I.R.), he was illegally detained by the present appellant and other co-accused persons in a camp in the Jungle "جنگل" for considerable period.

Identification of the appellant is having no question mark in the case rather same stands proved beyond the shadow of doubt; in this regard, relevant portions from statement of Ahmed Ali complainant/victim (PW-3) are hereby reproduced: -

*"Then they took me in a camp in the jungle where **Allah Bakhsh Hajana alias Bakhshi accused present in the court,** Nazak Bosan, Rasheed Dareeshak and Rasheed Gopang were present there and **guarding the already present abductees there.** The persons who took me there handed me over to the accused present there and themselves went to take rest as they were tired. Rasheed Dareeshak accused chained my foot and locked. Accused kept me there for two months and twenty days. **Accused Allah Bakhsh alias Bakhshi present in the court used to maltreated me, beat me and misbehave.**"*

(emphasis added)

*"**I came to know about the name of Allah Bakhsh during captivity.** Volunteered, I still don't know his parentage."*

(emphasis added)

*"It is correct that Allah Bakhsh accused was neither involved in my physical abduction nor in receipt of ransom. **Volunteered, he used to guard me during captivity.**"*

(emphasis added)

*"**Volunteered, as long as I was in captivity Kudli Bhand Gang, the present accused kept on guarding me** and he had no dispute with Kudli Bhand and his gang."*

(emphasis added)

In view of aforementioned peculiar facts and circumstances of the case, against the appellant, there was no need of identification parade of the appellant.

It is pertinent to mention here that occurrence in the case comprised upon following three acts:-

- (i) abduction of victim;
- (ii) keeping abductee in confinement till receipt of ransom amount; and
- (iii) receipt of ransom amount.

"**Goal**" was receiving the ransom amount; each aforementioned individual act was equally vital/effective; after abduction, act of keeping abductee in detention and guarding him can be safely termed as "**Bridge**" between abduction and receipt of ransom amount and without this bridge, episode was not complete. Thus, "**role**" played by

the appellant i.e. guarding the abductee during his alleged confinement, while during this period phone calls were got made to the relatives of abductee for paying ransom amount, which was then received by his co-accused, made possible achievement of the “**goal**”.

Ahmed Ali complainant (PW-3) being abductee/victim is the natural witness of the occurrence and during his evidence, he has narrated/explained complete detail of the occurrence and described specific role of the appellant (mentioned above); during his cross-examination, his credit could not be shaken and he remained consistent and his evidence has been found as reliable from all angles.

It goes without saying that learned counsel for the complainant stated at bar that Abdul Rasheed (one of the co-accused of the appellant, who was also nominated with similar role of presence in the camp where the abductee was taken and detained), has been convicted and sentenced in this case and his conviction and sentence has been maintained/upheld up to august Supreme Court of Pakistan; in this regard, he has referred judgment dated: 07.03.2019 passed by august Supreme Court of Pakistan in Crl. Appeal No.151-L of 2013, Crl. Appeal No.502 of 2018, Crl. Appeal No.503 of 2018, Crl. Appeal No.504 of 2018 and Crl. Appeal No.505 of 2018 (copy of the said judgment is available on file of this appeal); relevant portion from Paragraph No.5 of said judgment is reproduced: -

*“As regards **Abdul Rasheed** and Nazir Ahmed appellants **they were present at the camp where the abductee had been taken to and was detained therein**, Nazeer Ahmed appellant was among those who had abducted the abductee and had crossed the river with the abductee and the other accused persons and he was also included in those accused persons who had left the camp to receive the amount of ransom. **Ahmed Ali complainant (PW1), the alleged abductee and Ghulam Muhammad (PW2) had absolutely no reason to falsely implicate these appellants in a case of this nature.** Both the courts below had undertaken an exhaustive analysis of the evidence available on the record and had then concurred in their conclusion regarding guilt of these appellants having been proved beyond reasonable doubt and upon our own independent evaluation of the evidence we have not been able to take a view of the matter different from that concurrently taken by the courts below to the extent of these appellants. These appellants have already been treated leniently in the matter of their sentences. Criminal Appeals No.503 and 504 of 2018 are, therefore, dismissed and all the convictions and sentences of Mushtaq Ahmed, Abdul Rasheed and Nazir Ahmed appellants recorded and upheld by the courts below are maintained.”*

(emphasis added)

It is worth mentioning here that role of the appellant in the episode is heavier than the role attributed to Abdul Rasheed (mentioned above) as appellant was present in said camp and also guarded the abductee/victim during his alleged detention.

Now coming to the case of defence, in reply to question “why this case is made against you and why the PWs have deposed against you, appellant replied as under:-

“I am innocent in this case. Complainant/abductee did not mention the parentage and the residence of mine in alleged FIR. It is pertinent to note that during captivity of the alleged abductee, I had stern enmity with Khuda Bakhsh alias Kudli Bhand and his gang. I had informed the police the whereabouts of the gang of Kudli Bhand and the police raided on the said gang of Kudli Bhand and an encounter took place in which the real brother of Kudli Bhand namely Ashraf alias Sharin and two other members of his gang were murdered and FIR # 162/06 dated 21.04.2006 for offence u/s 324, 353, 148, 149 PPC at Police Station Zahir Peer was registered against the said Kudli Bhand etc. Kudli Bhand to take revenge from me attacked my house while they were in police uniforms. I escaped while my three real cousins namely Ranjha, Nazir Ahmed and Haji Sohanra were murdered by the said Kudli Bhand due to revenge of spy information provided to the police by me. A case for offences u/s 302, 171, 148, 149 PPC dated 23-06-2006 was registered at Police Station Seet Pur District Muzaffargarh by my KHALA ZAAD. In that case, I was an eye witness. During pursuing the murder case, I and complainant party usually met in the office of DPO, Muzaffargarh. How it is possible that I was member of that gang who abducted the alleged abductee.

No identification parade was conducted by the police during investigation. The police did not raid on my house during five years after the occurrence. Thereafter, police roped me in this case to show its pseudo performance and compelled the complainant party to nominate me as an accused in this case. Nothing was recovered from my possession. According to the FIR, neither I participated in the abduction of the alleged abductee nor at the time of alleged payment of ransom I was present there. I was falsely implicated in this case on the asking of police.”

However, it was mere bald assertion; appellant did not himself appear under Section: 340 (2) Cr.P.C. on oath in the Court; aforementioned documents produced in defence were though got exhibited by the appellant yet their contents were not got duly proved; furthermore, aforestated defence version by no way hits the worth of prosecution case; same could not cause any dent in the case of prosecution, particularly, when any reason to falsely implicate the

appellant by the complainant/victim/abductee in this case could not come on record; therefore, defence plea carries no value.

It is important to mention here that when case of prosecution has been kept in juxtaposition with the defence plea/evidence, then it has been found that prosecution has proved its case up to hilt beyond shadow of doubt through confidence inspiring evidence against the appellant whereas appellant's plea/version could not repel/refute the same and even otherwise remained unproved and unconvincing.

8. Nutshell of the above discussion is that we could not find any convincing reason to interfere with the finding of the learned trial court with respect to convictions recorded against and sentences awarded to the appellant under Section: 7(e) of Anti-Terrorism Act, 1997 and under Section: 365-A PPC read with Section: 21 (m) (i) of Anti-Terrorism Act, 1997 through impugned judgment, therefore, the same are maintained and instant appeal is **dismissed**.

(Ch. Mushtaq Ahmad)
Judge

(Farooq Haider)
Judge

APPROVED FOR REPORTING

(Ch. Mushtaq Ahmad)
Judge

(Farooq Haider)
Judge

Kashif